

Number 113(I) of 1999

THE EDUCATION AND TRAINING OF CHILDREN
WITH SPECIAL NEEDS LAW OF 1999

Because the children with special needs shall have the right Preamble.
to training as any other child; and

Because the children with special needs shall be provided
with all the opportunities for an equivalent training, guidance
and rehabilitation so as they shall be able to improve their
abilities to the maximum; and

Because the state shall be responsible for the children with
special needs from the time of their birth until the time of their
rehabilitation and improvement of their abilities to the
maximum; and

Because the state shall be responsible to avoid to create a
restrictive environment for the exercise of the above mention
rights of those children and it shall also be responsible to place
those children in the united body of training; and

Because the safeguarding of the rights of the children with
special needs shall raise the whole training; and

Because the rights of the children with special needs are
safeguarded by international declarations and conventions
ratified by the Republic of Cyprus.

The House of Representatives enacts as follows:

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PART I INTRODUCTION

1. This Law may be cited as the Education and Training of Short Title.
Children with Special Needs Law of 1999.

2.-(1) In this Law, unless a different meaning arises from Interpretation.
the text-

"Board" means the Board for Special Education and
Training established by the provisions of section 24
of this Law;

"Central Committee" means the Central Committee
for Special Education and Training established
under paragraph (1) of section 5 of this Law;

"child" means a person from the age of three years
until the completion of his studies, as it is referred
under the definition of the term "special education
and training";

"child with special needs" means a child having a
serious learning or special learning, functioning or
adjusting difficulty, caused by physical (including
sensory), mental or other gnostic or psychological
defficiencies and having need of special education
and training. A child shall have a learning, special
learning, functioning or adjusting difficulty if-

(i) it has a seriously bigger difficulty comparing with

the majority of the children of the same age; or

- (ii) it has a disability which excludes or hinders him from using the educational means of the sort the schools for children of the same age generally provide.

"District Committees" means the District Committees for Special Education and Training established under paragraph (2) of section 5 of this Law;

"Joining official" means a specially trained official in the public educational service;

"Minister" and "Ministry" means the Minister of Education and Culture and the Ministry of Education and Culture, respectively;

"Official Committee" means the Official Committee for Special Education and Training provided under section 25 of this Law;

"ordinary school" means any communal, public or private school, other than the school for special education and training;

"parent" means the natural or foster father or the natural or foster mother of the child or the person who lawfully acts as his guardian;

"performance" means the individual performance

proved in writing by the joining official or other official of the District Committee;

"pre-elementary special education" means the education provided by the state for the children with special needs from the age of three years until their placement in the educational system, so as they shall be able to improve themselves in order to achieve such placement, and includes training for the parents of children with special needs;

"school for special education and training" means a public or private school established and functioning according to the provisions of this Law for the provision of special education and training to children with special needs;

"special education and training" means the provision to the child with special needs with the necessary help for his overall improvement regarding all aspects, especially regarding the psychological, social and educational aspect, including all the ranks of training (pre-elementary, elementary, secondary, higher and highest) and regarding the pre-professional and professional training at schools, where that is possible, and includes among others, the teaching of abilities for the everyday self-care, personal hygiene, transportation, improvement of talking and communication, emotional cultivation and generally the safeguarding of all the means, provisions and human potential, for the purpose of his educational and social rehabilitation and an

independent life.

"special team" means a team functioning in an ordinary school for the provision of special education and training under the provisions of this Law.

(2) Terms which are not defined by this Law shall have the meaning given to them by the legislation in force for the pre-elementary, elementary, secondary, higher and highest education, as the case may be.

PART II

SCHOOL PROVIDING SPECIAL EDUCATION AND TRAINING

3.-(1) A child with special needs regarding which special education and training has been determined shall attend the education and training shall be provided in ordinary school. classes of an ordinary school, having the appropriate infrastructure, except in extraordinary cases, regarding which, under the provisions of this Law, a different arrangement shall be determined.

(2) Regarding children with special needs in elementary and secondary education, who, for a long period, shall not be able to attend the ordinary course of lessons in the school, due to health reasons, education may be safeguarded by other means. Attendance of lessons outside the school shall be considered as part of the ordinary course of lessons in the ordinary classes where the children are enrolled.

4.-(1) The attendance of a child with special needs, Attendance in regarding which special education and training has been special unit or determined, to a special unit of an ordinary school or to a in school for school for special education and training or anywhere else, special education. shall be prohibited, except to the extend and for the period the training in such places is determined under the provisions of this Law.

(2) Any school for special education and training shall be defined as a place providing special education and training, if it has been established and functions according to the provisions of this Law.

(3) A school for special education and training shall not function nor shall be defined as a place providing special education and training unless it is considered, according to the provisions of this Law, as organised, staffed and equipped so as the provision, by such school, of the determined special education is safeguarded.

(4) No place other than a school shall be defined as a place providing special education and training, unless it is considered, according to the provisions of this Law and after consultation with the parents, that the special education and training determined for the child could not be provided in a school.

(5) The function of the schools for special education and training shall be governed by Regulations made by the Council of Ministers within six months after the beginning of enforcement of this Law.

PART III
COMMITTEES FOR SPECIAL EDUCATION
AND TRAINING

5.-(1) A Central Committee for Special Education and Establishment
Training shall be established consisting of- of committees
for special
education and
training.

- (i) The Permanent Secretary of the Ministry, or his representative, as Chairman;
- (ii) the Directors of all the ranks of education in the Ministry (elementary, secondary, secondary technical and professional, higher and highest) or their representatives;
- (iii) the Director of the Department of Educational Psychology in the Ministry;
- (iv) one Supervisor of Special Education in the Ministry;
- (v) the Director of the Department of Mental Welfare of the Ministry of Health or his representative;
and
- (vi) the Director of the Department of Social Welfare or his representative.

- (b) The Central Committee shall have the right to call the parents of the child and any other specialist, considered necessary.
- (c) The members of the Central Committee shall be appointed by the Minister and the period of their office shall be of three years.
- (d) The Central Committee shall make rules governing any matter related to the way such Committee, as well as the District Committees, function.
- (e) The Central Committee shall:
 - (i) supervise the function of the District Committees;
 - (ii) decide on reports made by the District Committees;
and
 - (iii) examine the objections against the decisions of the District Committees.

2(a) In each District a District Committee for Special Education and Training shall be established, consisting of-

- (i) A First Education Officer in the Ministry, as chairman;
- (ii) a representative of the relevant rank of education in the Ministry, as the case may be;
- (iii) a teacher of special education;

(iv) a psychologist teacher;

(v) a clinical psychologist;

(vi) a social worker; and

(vii) a special pathologist:

Provided that the members designated in the subparagraphs (iii), (iv), (v) and (vi) shall come from the public sector.

(b) The District Committees shall call any other specialist as they consider necessary.

(c) The members of the District Committees shall be appointed by the Minister and the period of their office shall be of three years.

(d) The District Committees shall exercise the duties and powers allocated to them according to this Law, as well as any other duties or powers allocated to them according to Regulations made by the Council of Ministers under the provisions of this Law.

(3) The Minister shall care for the staffing of the District Committees with a joining official, administrative and secretarial personel as well as for the provision with the means, according to their needs.

PART IV
DETECTION AND EVALUATION OF THE NEEDS
OF CHILDREN WITH SPECIAL NEEDS

6.-(1) The Minister, in co-operation with other Ministries Mechanism for involved shall care for the creation of a mechanism for the detection. prompt detection of children who may have special needs and for the information and support of their parents.

(2) For the purposes of subsection (1), the Minister shall make Regulations within six months from the beginning of enforcement of this Law.

7. Any person, especially any parent, director of a nursery Duty for or kindergarten or elementary school or secondary school or acknowledge any other member of their education staff, doctor, psychologist, ment. social worker, shall acknowledge, without delay, to the District Committee each case, came to his knowledge or notice, of a child who may have special needs.

Provided that in case where the acknowledgement is made by a person other than the parent, the parent shall be immediately informed by the District Committee, before the commencement of the evaluation procedure. The procedure for information shall be laid in the Regulations made under section 6.

8.-(1) The District Committee shall have the duty to Duty for efficiently evaluate the needs of any child, considered to have evaluation. special needs, detected by the District Committee or regarding whom the District Committee is informed, wherever that child attends classes or stays.

(2) In case where the child is younger than three years, its needs shall be evaluated after the consent of its parents.

9. The evaluation of the needs of any child shall be carried out by the District Committee and it shall be based on evaluation of the child of a first instance multi-subject team, including a psychologist specialist in children, an educational psychologist, a teacher of special education, a doctor, a speech-pathologist and any other specialist as the case may need.

10.-(1) Before any evaluation, the District Committee shall serve to the parent of the child, whose needs shall be evaluated, a written notice, stating his rights according to paragraph (2) of this section, as well as stating a period of maximum thirty days from the day of the service of such notice, within which the parent must reply.

(2) The parent of the child shall have the right to attend during the evaluation and to participate alone or with a specialist on the specific matter, make representations and submit evidence and recommendations regarding the evaluation.

11.-(1) The District Committee shall be obliged, during the evaluation procedure, to demand the presence of the child for examination, upon a written notice being served to the parent of the child.

(2) The parent of the child who shall have been examined, shall have the right to attend during the examination and to be

accompanied by a special scientist of his choice.

(3) The notice given under this section shall-

(a) mention the scope of the examination;

(b) mention the time and the place of such examination;

(c) mention the name of the official in charge of the District Committee, from whom further information may be taken;

(d) inform the parent that he shall have the right to provide the District Committee with any information the Committee wishes;

(e) inform the parent about his right to attend during the examination; and

(f) inform the parent about his obligation to give any information useful for the evaluation.

12.-(1) After the completion of the evaluation the District Decision of the Committee shall communicate to the parent his reasoned District decision stating if it is advisable or not to provide the child with Committee. special education and training.

(2)(a) When the District Committee decides that it shall be advisable to provide the child with special education and training or means or facilities or exemptions, it shall write a report on the form determined by Regulations, made by the Council of Ministers within six months from the beginning of

enforcement of this Law.

(b) The report made by the District Committee, shall-

- (i) contain details of the evaluation and especially mention, in detail and with documentation, the findings of the evaluation, the special needs of the child and recommendations regarding the needs of the child; and
- (ii) determine the special education and training, the means, the facilities and exemptions which shall be granted to the child.

(c) In the case where it is decided that the special education and training or part thereof shall be provided in a place other than the classroom of an ordinary school, it shall be also decided if and to what extent that special education and training shall be provided in a special unit or elsewhere:

Provided that, if it is decided that the attendance in a school for special education and training not located in the area where the child lives is advisable, the District Committee shall care for the transportation of the child to and from the school free of charge.

(d) In the case where the special education and training shall be provided, totally or partly, in a classroom of an ordinary school, the following shall be determined:

- (i) The public school and the classroom where the child shall attend:

Provided that, if due to specific reasons, the attendance to a school of the area where the child lives shall not be possible, the District Committee shall care for the transportation of the child to and from the school free of charge.

- (ii) The number of children in the classroom where children with special needs shall attend, shall be reduced according to the degree of gravity of the problem of the children placed in such classroom. The degree of reduction shall be determined on the basis of the multi-subject evaluated needs of each child, taking into consideration the opinion of the special teacher of the child, the teacher of the classroom and the headmaster of the school, after consultation with the Ministry.
- (iii) The exemptions of the child as well as the amendments or adjustments to the time-table and the provision of means or facilities.
- (iv) The kind of the educational, psychological, scientific or other support and the general help regarding means or otherwise, needed to be provided to the child.
- (v) The necessary building and environmental changes or completions for the abolishment of architectural obstacles in the school proposed.
- (vi) The degree of exemption from the teaching

periods of the teachers having the responsibility of the classroom where the child shall attend regarding-

- (a) the provision of the determined special education and training;
 - (b) their more convenient preparation;
 - (c) the co-operation with the parents of the child and with any other person involved, with the purpose to provide such child with any help under the meaning of special education and training.
- (vii) The joining official being directly responsible for the child on behalf of the District Committee.

13.-(1) The Minister shall determine from the permanent existing specialised staff of the public educational service, according to the needs arising for each district, officials having qualifications relevant to the special education and training, who shall exercise the duties of the joining official.

(2) The duties of the joining officials shall be connected with the education and training of the children with special needs, determined by Regulations made by the Council of Ministers within six months from the beginning of enforcement of this Law and include-

- (a) Setting up, in co-operation with the teachers and the parents of the child, of an individual programme of

training and supervision of the progress of the child on the basis of its evaluated needs;

- (b) provision of support and instruction to the parents of the children with special needs;
- (c) provision of means, facilities and exemptions;
- (d) co-operation with the administration of the school, the teachers and any other person involved, for the effective provision of the determined special education and training, the settlement of the arising problems and the provision of any help, within the meaning of special education and training; and
- (e) drawing up and submission to the District Committee, through the relevant inspector, at least every six months, of reports regarding each child being under their responsibility. Those reports shall include the views of the parent of the child, the administration of the school, the teachers and any other person involved in the provision of special education and training to each child.

14.-(1) The report of the District Committee shall be submitted, without delay, to the parent of the child, with a written notice regarding his rights under paragraph (2) of this section.

Submission of the report of the District Committee, rights and duties of the parent.

(2) The parent of the child, within a period of thirty days from the day of submission of such report shall-

- (a) make written representations regarding the points of the report to which he disagrees;
- (b) inform the District Committee that he intends to make, on his own costs, alternative arrangements for the provision to the child of the determined special education at a private school or otherwise, according to the case; and
- (c) suggest the interruption of further training of the child, giving the reasons for this, in the case where the child attends an ordinary school and has completed the stages of compulsory education.

(3) In the case of submission of representations or suggestions for alternative arrangements or interruption of the education under paragraph (2) of this section, the District Committee shall, having examined the matter, draw up a relevant report and decide, giving due reasoning, for-

- (a) The approval or disapproval of the provision of the determined special education, as the parent suggests;
- (b) the interruption of the education, for the interest of the child.

(4) The report of the District Committee, under paragraph (3) of this section shall be-

(a) submitted without delay to the parent of the child, with a written notice about his right to make an objection to the Central Committee, under section 16 of this Law; and

(b) communicated to the Central Committee and to the head of the school or to any other place, where the determined special education shall be provided, totally or partly.

(5) The parent of the child, based on the report of the District Committee, shall enrol and keep the child to the school or other place determined in this report.

15.-(1) The District Committee shall re-evaluate the needs Re-evaluation. of each child with special needs, at least once a year.

(2) Upon the application of the parent or the suggestion of the joining official, the District Committee shall make re-evaluations more often.

(3) The provisions of this Law, regarding the evaluation and especially the procedure followed and the rights and duties arising, shall be applied, mutadis mutandis, to the re-evaluation.

(4) During the re-evaluation of children being eighteen years old, the District Committee may decide the provision of special education and training, according to the content of the report, for another year after the completion of the eighteenth year of age and so forth until the completion of the twentieth year of age. In such case the rights and duties provided in this

Law regarding the children with special needs shall be created.

16.-(1) The parent may make a written objection, to the Right to Central Committee against a decision of the District Committee objection. regarding the evaluation or re-evaluation of the needs of the child, within the period of thirty days from the date of submission to him of the relevant report.

(2) The Central Committee shall examine the documents, including any written representations of the parent, and upon its reasoned decision, it may ratify, amend or substitute the decision of the District Committee.

(3) The Council of Ministers shall, by Regulations made within six months from the beginning of enforcement of this Law, regulate any matter related to the objection made under this section.

PART V

PROVISION OF SPECIAL EDUCATION AND TRAINING

17.-(1) Any child shall be entitled to attend public school for Provision of the provision of the special education and training determined special education and training in public school under the provisions of this Law, free of charge. free of charge.

(2) The Council of Ministers shall care-

(a) For the employment of the teachers and other staff necessary,

- (b) for the provision of any scientific or/and other service necessary,
- (c) for the provision of the places where the special education and training shall be provided, with all the modern educational or/and other means and equipment, general or individual, for the satisfaction of the special needs of each child,
- (d) for the existence, in the places where the special education and training shall be provided, of all the facilities necessary for the unhindered movement, action, exercise, entertainment and satisfaction of the individual needs of each child in general, within the meaning of special education and training.

18.-(1) Children regarding to whom special education and Attendance to training has been determined, shall attend ordinary schools ordinary with appropriate infrastructure, according to the educational school. programme of the Ministry, adopted to their own needs and to their individual programme.

(2) Minister shall care for-

- (a) The creation of special units according to the needs arising from the evaluation reports issued by the District Committee;
- (b) the information, before the beginning of the academic year and whenever that seems to be necessary, through seminars, lectures or by any other means, of

the teachers involved, directly or indirectly, in the training of children regarding whom special education and training has been determined; and

- (c) the information and sensitization of the other pupils through the head of the school.

(3) The head of any ordinary school, in co-operation with the joining official, shall communicate officially a written report regarding teaching or other scientific or other auxiliary staff, facilities, equipment or building arrangements needed for the effective provision of the determined special education and training of children attending such school.

(4)(a) The children regarding to whom special education and training has been determined, shall be submitted to tests and exams of the same level and demands as for the rest of pupils, provided by the educational program, in all stages of the education, adopted to their scientifically evaluated special needs.

(b) The Council of Ministers shall, within six months from the beginning of enforcement of this Law, make Regulations regarding the adaptations necessary for each case.

(5) Children, regarding to whom special education and training has been determined and who attend ordinary class or special unit of an ordinary school, shall be moved up on the same conditions as all the pupils, on the basis of the individual educational program.

(6) Any child with special needs shall be provided with an

ordinary leaving certificate, with the appropriate remarks, where this is necessary.

Provided that in case where the child can not satisfy the requisite, under paragraph (4), test, after the recommendation of the District Committee, that child shall be provided with a certificate of attendance.

19. The public schools for special education and training, Public schools being part of the common body of the educational system shall for special be- education and training.

(a) established, administered and staffed with the necessary teachers and other scientific (psychologists, speech-therapists, doctors, physiotherapist and others) supporting and auxiliary staff,

(b) provided with modern means necessary for the fulfilment of their mission, and

(c) maintained and function as the ordinary schools.

20.-(1) Private schools for special education and training Private shall be established and function, under the provisions of any schools for law being in force regarding Private Schools, provided that special they have the licence necessary for function as a school for education and special education and training, granted by the Council of training. Ministers.

(2) The licence for the establishment and function of private schools for special education and training shall be granted,

taking into consideration their staffing with teachers and other scientific or non-scientific personnel, their equipment and their building and other installations, the area where they are located and any other factor relevant to the mission of the schools for special education and training within the provisions of this Law.

(3) The Council of Ministers shall within six months from the beginning of enforcement of this Law, make Regulations determining the following:-

- (a) The duration of the licences for the function of private schools for special education and training,
- (b) the procedure and the terms for the renewal of a licence for function of private schools for special education and training,
- (c) the procedure and the terms for the annulment of a licence for function of private schools for special education and training,
- (d) the staffing and the qualifications of the personnel, and
- (e) any matter relating to the function of private schools for special education and training.

21.-(1) The children attending schools for special education and training shall be placed in groups, formed on the basis of schools for the age and the characteristics of each child as well as on the special multi-subject evaluated special education and training education and training determined for those children.

(2) The number of pupils in these groups shall be determined on the basis of the evaluated needs of each child, from a group consisting of an Inspector of Special Education, a teacher psychologist, a teacher for special education, all coming from the public sector, and the head of the school.

(3) The educational policy of the schools for special education and training shall be determined by the Council of Ministers and shall be adapted to the special education and training determined for each child attending those schools;

Provided that the educational policy shall include a system of continuous contact of the schools for special education and training with the ordinary schools of the area and organisation of common events, as the case may be.

Provided further that no schools for special education shall be established and function if those schools are not home with ordinary schools, unless the Council of Ministers decides differently, due to special reasons.

22. The Council of Ministers, shall, within six months from Private the beginning of enforcement of this Law, make Regulations schools. relating to the readjustments of the building of each private school necessary for the children with special needs.

23. The Council of Ministers shall, within six months from Higher and the beginning of enforcement of this Law, make Regulations highest relating to the special education provided by the higher and educational institutions. highest educational institutions.

PART VI

BOARD FOR SPECIAL EDUCATION AND TRAINING

24.-(1) The Board for Special Education and Training shall be established, consisting of the Permanent Secretary of the Ministry of Education and Culture, the Directors of all the ranks of education of the Ministry (Elementary, Secondary, Secondary Technical and Professional, Higher and Highest), the First Medical Officer of the Ministry of Health, the Director of the Department of Welfare Services, a representative of each professional association of the doctors, psychologists, speech-therapist and four representatives of the organisations of parents.

Establishment
of Board for
Special
Education and
Training.

(2) The members of the Board, shall be appointed by the Council of Ministers on the basis of the terms determined on the instrument of their appointment. The period of their office shall be of three years.

(3) The chairman and the secretary of the Board shall be appointed by the Council of Ministers.

(4) The Board shall meet, at least, twice a year and shall make standing orders regulating any matter relating to the way of its function.

(5) The Board shall watch the application of this Law and make suggestions to the Minister for-

- (a) general matters of the special education and training,
- (b) plans for the improvement of the special education and

training,

- (c) related special matters referred to it by the Minister, and
 - (d) related special matters brought in writing by special bodies like the Committee for the Protection of Persons with Mental Disabilities or associations of parents of children with special needs or their federations.
- (6) The Board shall suggest for the conduct of scientific research regarding matters of special education and training.
- (7) The Board may-
- (a) Call any person, specialist or not, to express views regarding any matter of his competence;
 - (b) appoint sub-committees for the study of certain matters; and
 - (c) forward matters to the Caretaker Committee for study.

PART VII MISCELLANEOUS

25.-(1) The Caretaker Committee for Special Education and Caretaker Training shall be established, consisting of officers from the Committee for Special Education and Training.

(2) The chairman and the members of the Caretaker Committee shall be appointed by the Minister.

(3) The Caretaker Committee shall-

- (a) co-ordinate and supervise the provision of special education and training and co-operate with the Service for Development of Programs of the Ministry for the setting up of programs for special education and training,
- (b) co-operate with the Service of Educational Psychology of the Ministry for matters of the competence of that service,
- (c) co-operate with the Service of Professional Orientation of the Ministry regarding matters of the children with special needs,
- (d) supervise and evaluate the programs of the schools of special training,
- (e) conduct scientific research regarding matters of special education and training and submit suggestions to the Minister,
- (f) assign to a special officer or to inter-scientific or inter-professional groups to visit places where special education and training is provided, places where children with special needs live or are under treatment and to provide special consulting support to the

teachers or other specialists as well as to the trainees,

(g) study matters assigned to it by the Board.

(4) The Caretaker Committee, after the completion of the provided special education and treatment of each child, shall forward, with the consensus of the parents or the child, to the competent service for the matters of disabled persons of the Ministry of Work and Social Insurance and to any other relevant, according to the case, service a report with information regarding the abilities and the special needs of each child for the purpose of the employment and provision of help.

(5) The Minister shall care for the staffing of the Caretaker Committee with the necessary scientific, administrative and secretarial personnel.

26. Any person contravening any of the provisions of this Offences. Law shall be guilty of an offence and in case of conviction he shall be punished with a fine up to two thousands pounds.

27. The Council of Ministers may make Regulations for the Regulations. better application of this Law and for the regulation of any other matter which, under the provisions of this Law, shall have to or may be regulated by Regulations.

28.-(1)(a) The accession, classification and re-classification Transitional of children under the provisions of the Special Education Law provisions. shall be continue for a period of two years from the date of 47 of 1979. beginning of enforcement of this Law.

(b) The accession and incorporation of deaf children to the education system under the provisions of the Accession and 61(l) of 1993. Incorporation of Deaf Children to the Educational System (Pro-elementary, Elementary and Secondary Education) Law shall continue for a period of two years from the date of the beginning of enforcement of this Law.

(2) The special schools functioning during the beginning of enforcement of this Law shall be obliged to comply with its provisions within a period of two years from the date of the beginning of its enforcement, and then they shall be subject to the provisions of this Law.

29. Subject to the provisions of section 28 and of paragraph Annulments. (c) of this section, the proviso thereof included, by the beginning of enforcement of this Law the following shall be annulled-

(a) The Special Education Law,

(b) the Accession and Incorporation of Deaf Children to the Educational System (Pro-elementary, Elementary and Secondary Education) Law,

(c) the provisions of the School for Deafs "St Varnavas" Cap. 168. Law which are incompatible to the provisions of this Law.

Provided that the provisions of this Law shall not affect the provisions of the School for Deafs "St Varnavas" Law and the function of the school of "St Varnavas" regarding the training and the accession to the society of deaf adults and the

services and the means necessary to them.